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California bill would ban ultra-processed foods from school lunch programs

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California is one step closer to becoming the first state in the nation to ban ultra-processed foods in public school lunches with bipartisan legislation approved by the state Assembly.

The bill, AB 1264, introduced by Assemblymember Jesse Gabriel, would direct the California Office of Environmental Health Hazard Assessment to define ultra-processed foods and identify particularly harmful ones to be phased out of school meals by 2032. The legislation is co-sponsored by Consumer Reports and the Environmental Working Group.

"This bill, beginning July 1, 2035, would prohibit a school district, county superintendent of schools, or charter school maintaining kindergarten or any of grades 1 to 12, inclusive, from offering a nutritionally adequate breakfast or lunch that includes particularly harmful ultraprocessed foods, as provided, and would prohibit a school operated and maintained by a school district or county office of education from selling food or beverages, except for food items sold as part of a school fundraising event, containing those particularly harmful ultraprocessed foods, as provided. To the extent this bill would impose additional requirements on public schools, the bill would impose a state-mandated local program," according to the legislation summary.

Recent research has linked diets that include a lot of ultra-processed foods — such as soft drinks and packaged snacks — to serious health risks, including cancer, cardiovascular disease, and Type 2 diabetes. An estimated 67 percent of the calories in food eaten by children comes from ultra-processed food, according to a study published in JAMA in 2021.

"Ultra-processed foods offer little nutritional value and are deliberately engineered to make them hard to resist, which encourages unhealthy eating habits and overconsumption," said Brian Ronholm, director of food policy at Consumer Reports.

"Students should be provided with healthier options instead of ultra-processed food that puts their health at risk. This bill will help protect the health of California kids and establish an important new standard for the rest of the nation by getting harmful ultra-processed food out of our schools."

The bill defines ultra-processed foods as those that contain one or more certain functional ingredients, including colors, flavors, sweeteners, emulsifiers, and thickening agents.

The state's Office of Environmental Health Hazard Assessment would be required to identify ultra-processed foods considered particularly harmful based on whether peer-reviewed evidence has linked the substance to cancer, cardiovascular disease, metabolic disease, developmental harms, reproductive harms, obesity, Type 2 diabetes; whether the substance is hyper-palatable or may contribute to food addiction; and whether the food has been modified to be high in fat, sugar and salt.

The bill, on or before Feb. 1, 2027, and on or before Feb. 1 of each year thereafter through Feb. 1, 2032, would require school lunch vendors to report certain information to the office for each food product sold to a school in the past calendar year, including, among other things, whether that food is ultra-processed or a particularly harmful ultra-processed food. The bill, on or before July 1, 2027, and on or before July 1 of each year thereafter through July 1, 2032, would require the office, in consultation with the State Department of Education, to submit to the Legislature and the governor a report that contains, among other things, a summary and analysis of the information reported to the office by vendors and recommendations for state and local legislative actions that could reduce the consumption of ultraprocessed foods and particularly harmful ultraprocessed foods in schools.

The U.S. Health and Human Services secretary, Robert F. Kennedy Jr., has made processed foods a top target, citing their impact on human health as one of the biggest dangers facing the American public.

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